

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Teecie Dove	Team: Squad #02	CCRB Case #: 202203606	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 05/30/2022 8:45 PM	Location of Incident: Nelson Avenue and West 172nd Street	18 Mo. SOL 11/30/2023	Precinct: 46		
Date/Time CV Reported Tue, 05/31/2022 3:54 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/06/2022 10:20 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Ariel Cruz	01114	951644	046 PCT
2. PO James Geberth	19747	969724	046 PCT
3. LT Stephanie Mouzakitis	00000	944560	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Michael McCabe	31701	966698	046 PCT
2. LT Rafael Tosado	00000	937928	046 PCT
3. PO Eric Bernard	19619	958308	046 PCT
4. PO Michael Phipps	23908	965415	046 PCT
5. SGT Michael McDermott	03802	950858	046 PCT
6. PO Carolyn Daley	09308	967471	046 PCT
7. PO Sammy Figueroa	20454	963030	046 PCT
8. PO Benjamin Warren	25650	970309	046 PCT
9. PO Johnmichael Medina	02074	969974	046 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz stopped the vehicle in which § 87(2)(b) and an individual were occupants.	A . Within NYPD Guidelines
B . SGT Ariel Cruz	Discourtesy: Sergeant Ariel Cruz spoke discourteously to § 87(2)(b)	B . Substantiated
C . SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz threatened to arrest § 87(2)(b)	C . Substantiated
D . SGT Ariel Cruz	Force: Sergeant Ariel Cruz used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO James Geberth	Force: Police Officer James Geberth used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO James Geberth	Force: Police Officer James Geberth restricted § 87(2)(b) breathing.	F . Unfounded
G . SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz questioned § 87(2)(b)	G . Substantiated
H . SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz issued an unlawful summons to § 87(2)(b)	H . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
I . SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz searched the vehicle in which § 87(2)(b) and an individual were occupants.	I . Substantiated
J . SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz stopped an individual.	J . Substantiated
K . SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz searched an individual.	K . Within NYPD Guidelines
L . LT Stephanie Mouzakis	Abuse: Lieutenant Stephanie Mouzakis seized § 87(2)(b) property.	L . Within NYPD Guidelines

Case Summary

§ 87(2)(b) filed this complaint with IAB on May 31st, 2022. It was received by the CCRB on June 6th, 2022.

On May 30th, 2022, at approximately 8:45 PM, § 87(2)(b) was in the passenger seat of his vehicle, and his cousin, § 87(2)(b) was driving. There was an unidentified female passenger in the back seat. Sergeant Ariel Cruz, Police Officer James Geberth, and Police Officer Michael McCabe of the 46th Precinct pulled the vehicle over in the vicinity of Nelson Avenue and West 172nd Street in the Bronx (**Allegation A: Abuse of Authority – Vehicle Stop, Within NYPD Guidelines**). § 87(2)(b) asked why they were being pulled over, and Sergeant Cruz responded using profanity and referred to § 87(2)(b) as a “smartass” (**Allegation B: Discourtesy – Word, Substantiated**). § 87(2)(b) and Sergeant Cruz engaged in an argument, and Sergeant Cruz threatened to arrest § 87(2)(b) (**Allegation C: Abuse of Authority – Threat of Arrest, Substantiated**). Sergeant Cruz ordered § 87(2)(b) out of the vehicle, and § 87(2)(b) refused, at which point Sergeant Cruz and Police Officer Geberth forcefully removed § 87(2)(b) from the vehicle (**Allegation D and E: Force – Physical Force, Within NYPD Guidelines**), during which time Sergeant Cruz asked § 87(2)(b) if he had any weapons on him (**Allegation G: Abuse of Authority – Question, Substantiated**). Sergeant Cruz brought § 87(2)(b) to the ground, and Police Officer Geberth allegedly placed his knee on § 87(2)(b) mid-back (**Allegation F: Force – Restricted Breathing, Unfounded**). § 87(2)(b) was placed in handcuffs and issued a summons for Disorderly Conduct (**Allegation H: Abuse of Authority – Unlawful Summons, Substantiated**). Sergeant Cruz searched § 87(2)(b) vehicle (**Allegation I: Abuse of Authority – Vehicle Search, Substantiated**) and ordered Police Officer McCabe to stop the unidentified female passenger as she was walking away (**Allegation J: Abuse of Authority – Stop, Substantiated**). Police Officer McCabe then searched the unidentified female’s bag (**Allegation K: Abuse of Authority – Search (of person), Within NYPD Guidelines**). Lieutenant Stephanie Mouzakis of the 46th Precinct obtained § 87(2)(b) car keys from § 87(2)(b) and Police Officer Michael Phipps drove § 87(2)(b) vehicle to the 46th Precinct stationhouse (**Allegation L: Abuse of Authority – Property Seizure, Within NYPD Guidelines**). § 87(2)(b) was taken to the stationhouse and released with summonses for disorderly conduct (**BR 24**) and having an open container of alcohol in public (**BR 36**). No summonses were issued to § 87(2)(b) or the unidentified female.

Body-worn camera (BWC) footage was obtained from the BWCs of Sergeant Cruz (**BR 05**), Police Officer Geberth (**BR 11**), Police Officer McCabe (**BR 25**), and Lieutenant Mouzakis (**BR 26**); as well as from Sergeant McDermott, Police Officer Sammy Figueroa, Lieutenant Rafael Tosado, Police Officer Eric Bernard, Police Officer Michael Phipps, Police Officer Carolyn Daley, Police Officer Benjamin Warren, and Police Officer John-Michael Medina (**BR 35**). The footage is summarized in IA #70 (**BR 31**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Ariel Cruz stopped the vehicle in which § 87(2)(b) and an individual were occupants.

Allegation (B) Discourtesy: Sergeant Ariel Cruz spoke discourteously to § 87(2)(b)

§ 87(2)(b) was interviewed by the CCRB on June 23rd, 2022 (**BR 01**). § 87(2)(b) was interviewed on August 16th, 2022 (**BR 02**). Neither § 87(2)(b) nor § 87(2)(b) could identify the female who was with them in their vehicle. Sergeant Cruz was interviewed on March 14th, 2023 (**BR 03**). Lieutenant Mouzakis was interviewed on May 9th, 2023 (**BR 04**).

It is undisputed that § 87(2)(b) was driving, and § 87(2)(b) was in the front passenger seat of § 87(2)(b) vehicle. An unidentified female passenger was in the back seat. The windows of § 87(2)(b) vehicle were tinted beyond the legal limit, and his rear license plate was covered by a license plate cover. Sergeant Cruz, Police Officer Geberth, and Police Officer McCabe stopped § 87(2)(b) vehicle. § 87(2)(b) asked why they were being stopped, and Sergeant Cruz explained that it was because of the window tints and the license plate cover.

§ 87(2)(b) stated that, when he asked why they were being stopped, Sergeant Cruz responded, “These fucking license plates. These fucking tints.”

Sergeant Cruz stated that he did not perform a tint test on § 87(2)(b) vehicle during the vehicle stop, but his training and experience in performing vehicle stops allowed him to observe that § 87(2)(b) vehicle was tinted beyond the legal limit. When § 87(2)(b) asked why they were being stopped, Sergeant Cruz stated, “You see that shit covering the license plate? That’s not supposed to be there.” Sergeant Cruz and § 87(2)(b) engaged in a brief argument, during which Sergeant Cruz called § 87(2)(b) a “smartass.”

Sergeant Cruz’s BWC footage (**BR 05**) shows that, at timestamp 2:20, Sergeant Cruz states, “I see you’re a smartass for no reason.” § 87(2)(b) responds, and Sergeant Cruz calls him a “smartass” again.

NY CLS VTL § 375 12-a (**BR 06**) states that “no person shall operate any motor vehicle upon any public highway, road, or street,” in which any of the vehicle’s windows are “treated with any material which has a light transmittance of less than seventy percent.” People v. Vonthaden, 13 Misc. 3d 408 (**BR 07**) states that an officer’s observation of an illegal tint is sufficient to perform a vehicle stop, regardless of whether a tint test was performed.

NY CLS VTL § 402 (**BR 08**) states that all motor vehicles being operated upon public highways, roads, or streets, must have a license plate affixed to its rear, and “such number plates shall not be obstructed by any part of the vehicle or by anything carried thereon.”

Patrol Guide Procedure 200-02 (**BR 09**) states that officers must perform their duties with “courtesy and civility,” and they must “respect the dignity of each individual” with which they interact. While officers are generally prohibited from using profanities toward civilians, such language is permitted “in the context of a dynamic situation over which [they are] attempting to gain control.” Such profanity may not be used when it “[serves] no legitimate purpose but to belittle” a civilian. PD v. Pichardo, DCT Case Number 2015-15012 (**BR 10**).

§ 87(2)(g) § 87(2)(b) vehicle windows were heavily tinted, and he had a license plate cover,

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

it is recommended that **Allegation B** be **Substantiated**.

Allegation (C) Abuse of Authority: Sergeant Ariel Cruz threatened to arrest § 87(2)(b).

Sergeant Cruz stated that, as the officers attempted to obtain pedigree information from § 87(2)(b)

§ 87(2)(b), § 87(2)(b) continuously interjected and prevented the officers from obtaining the necessary information. Sergeant Cruz threatened to arrest § 87(2)(b) because of this interference and because of § 87(2)(b) “violent” language, which included § 87(2)(b) calling Sergeant Cruz “soft,” saying, “Fuck this,” and “Fuck that,” and asking Sergeant Cruz, “Are you scared?” At that point, § 87(2)(b) could have been arrested for Obstruction of Governmental Administration (OGA) or disorderly conduct.

Police Officer Geberth’s BWC footage (**BR 11**) shows that, at timestamp 01:15, upon officers approaching § 87(2)(b) vehicle, § 87(2)(b) asks why they are being pulled over. Sergeant Cruz explains, using profanity in his explanation, before asking § 87(2)(b) for his driver’s license. § 87(2)(b) interjects and asks why Sergeant Cruz is using profanity. Sergeant Cruz responds, “Why am I cursing? Why are you being aggressive?” § 87(2)(b) asks, “I’m aggressive? Are you scared? I’m just asking you.” Sergeant Cruz responds, “That’s how I talk. You come like that, that’s how I’m going to come at you.” § 87(2)(b) responds, “That’s how I’m going to come at you, then.” Sergeant Cruz then states, “That’s fine. When you end up at the precinct, then what. You’re going to be in the precinct the whole night.”

NY Penal Law § 195.05 (BR 12) describes OGA as any instance where an individual intentionally obstructs or prevents a public servant from performing their official duties, “by means of intimidation, physical force or interference, or by means of any independently unlawful act.”

The courts have held that OGA necessitates “a physical or independently unlawful act” as the primary form of obstruction, and that a refusal to answer an officer’s questions or provide their identification does not rise to the necessary level of obstruction. Uzoukwu v. City of New York, 805 F.3d 409 (2015) (**BR 13**).

To be charged with Disorderly Conduct, a person must intentionally “cause public inconvenience, annoyance, or alarm” by engaging in “violent, tumultuous, or threatening behavior.” NY CLS Penal Law 240.20 (BR 14). This behavior must extend beyond an individual encounter with officers and must affect bystanders in the vicinity. People v. Baker, 20 N.Y.3d 354 (**BR 15**). Exceptions to this include an individual encounter in a location in which it is reasonable to expect that others may face the consequences of such disruption, despite them not being present. People v. Poole, 128 A.d.3d 576 (**BR 16**).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(b) while Sergeant Cruz described § 87(2)(b) language as violent, BWC footage shows that § 87(2)(b) statements prior to the threat of arrest were consistent with personal anger and were neither violent, nor did they meaningfully interfere with Sergeant Cruz’s ability to carry out his duties. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegation C** be **Substantiated**.

Allegation (D) Force: Sergeant Ariel Cruz used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer James Geberth used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer James Geberth restricted § 87(2)(b) breathing.

Allegation (G) Abuse of Authority: Sergeant Ariel Cruz questioned § 87(2)(b)

It is undisputed that Sergeant Cruz ordered § 87(2)(b) to exit his vehicle, and § 87(2)(b) refused. Sergeant Cruz and Police Officer Geberth then used force to remove § 87(2)(b) from the vehicle. The officers struggled to bring § 87(2)(b) to the ground, during which time Sergeant Cruz asked § 87(2)(b) if he had any weapons. The officers positioned § 87(2)(b) with his chest against the ground as they handcuffed him.

§ 87(2)(b) stated that Sergeant Cruz opened the passenger door and unbuckled his seatbelt before grabbing § 87(2)(b) by the neck of his shirt. Police Officer Geberth grabbed § 87(2)(b) right arm, and the officers pressed § 87(2)(b) back against the side of the vehicle. Sergeant Cruz held onto § 87(2)(b) left arm, and the officers pulled § 87(2)(b) arms in opposite directions, causing pain to his neck. Sergeant Cruz and Police Officer Geberth punched § 87(2)(b) ribcage approximately four times before using their feet to swipe at § 87(2)(b) legs. Sergeant Cruz asked § 87(2)(b) if he had any weapons, and the officers then brought him to the ground. After handcuffing him, Police Officer Geberth pressed his knee against § 87(2)(b) mid-back.

Sergeant Cruz stated that, upon first approaching the vehicle, he saw § 87(2)(b) leaning to his left side, which led Sergeant Cruz to believe that § 87(2)(b) was concealing a weapon. § 87(2)(b) continuously interjected as the officers spoke to § 87(2)(b) which further led Sergeant Cruz to believe that § 87(2)(b) was purposefully interfering with the car stop in order to conceal a weapon. § 87(2)(b) was “fidgety,” and when Sergeant Cruz asked § 87(2)(b) to exit the vehicle, § 87(2)(b) refusal gave Sergeant Cruz “reasonable suspicion” that § 87(2)(b) was concealing a weapon. Sergeant Cruz never saw any objects in § 87(2)(b) possession that resembled a weapon. Sergeant Cruz and Police Officer Geberth grabbed § 87(2)(b) arms to remove him from the vehicle, and neither officer ever punched § 87(2)(b). Sergeant Cruz did not swipe at § 87(2)(b) legs, but instead lifted him by the waist and brought him to the ground. Police Officer Geberth never placed his knee on § 87(2)(b) back.

Police Officer Geberth’s BWC footage (**BR 11**) shows that, at timestamp 02:55, Sergeant Cruz orders § 87(2)(b) out of the vehicle, and § 87(2)(b) refuses. Sergeant Cruz states, “Either you get out of the car or you’re getting pulled out of the car.” § 87(2)(b) continues to refuse, and Sergeant Cruz opens § 87(2)(b) car door. He asks § 87(2)(b) if he has any weapons on him, and § 87(2)(b) says no. Sergeant Cruz again asks § 87(2)(b) to get out of the vehicle, and § 87(2)(b) again refuses. Sergeant Cruz and Police Officer Geberth grab § 87(2)(b) arms and remove him from the vehicle. § 87(2)(b) struggles against the officers and eventually breaks free of their hold. Sergeant Cruz grabs § 87(2)(b) by the waist and brings him to the ground, where the officers handcuff him. Neither Police Officer Geberth nor Sergeant Cruz ever punch § 87(2)(b). Police Officer Geberth never places his knee on § 87(2)(b) back.

The courts have held that, during a lawfully conducted car stop, officers have the right to order the occupants of the vehicle to exit. Pennsylvania v. Mims, 434 U.S. 106 (1977) (**BR 17**). However, when it comes to an officer questioning said occupants about suspected criminality, the framework set forth in People v. De Bour, 40 N.Y.2d 210 (1976) (**BR 18**) extends to car stops, in that founded suspicion is required as the basis of said inquiry. People v. Garcia, 20 N.Y.3d 317 (2012) (**BR 19**). To question an individual about possession of a weapon, officers must have “proof of a describable object or of describable conduct which provided a reasonable believe that an individual possessed a gun.” People v. Prochilo, 41 N.Y.2d 759 (1977) (**BR 20**). This describable conduct “must be more than subjective... [and] sufficient to induce an ordinarily prudent and cautious person under the circumstances to believe that criminality is at hand.” Behavior that is “readily susceptible of an innocent interpretation” is not a sufficient factor to determine reasonable suspicion. People v.

Howard, 147 A.D.2d 177 (1989) (BR 21).

Patrol Guide Procedure 221-01 (BR 22) requires officers to analyze their use of force based on the subject's actions or whether they are displaying active resistance; in such cases, officers should use only the reasonable amount of force necessary to gain control. Active resistance, as defined in Patrol Guide Procedure 221-02 (BR 23) comprises "physically evasive movements to defeat a member of the service's attempt at control... or verbally signaling an intention to avoid or prevent being taken into custody."

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed as **Within NYPD Guidelines**, and **Allegation F** be **Unfounded**.

§ 87(2)(g)

Sergeant Cruz testified that he did not observe any object that may have resembled a weapon, § 87(2)(g)

It is therefore recommended that **Allegation G** be **Substantiated**.

Allegation (H) Abuse of Authority: Sergeant Ariel Cruz issued an unlawful summons to

§ 87(2)(b)

was issued a summons for disorderly conduct by Police Officer McCabe (BR 24).

Sergeant Cruz stated that it was his decision to have the disorderly conduct summons issued to § 87(2)(b) and that he decided to issue § 87(2)(b) a summons for disorderly conduct at the point when § 87(2)(b) began struggling against his and Police Officer Geberth's attempts to handcuff him.

To be charged with Disorderly Conduct, a person must intentionally "cause public inconvenience, annoyance, or alarm" by engaging in "violent, tumultuous, or threatening behavior." NY CLS Penal Law 240.20 (BR 14). This behavior must extend beyond an individual encounter with officers and must affect bystanders in the vicinity. People v. Baker, 20 N.Y.3d 354 (BR 15). Exceptions to this include an individual encounter in a location in which it is reasonable to expect that others may face the consequences of such disruption, despite them not being present. People v. Poole, 128 A.d.3d 576 (BR 16).

§ 87(2)(g) § 87(2)(b) struggle against officers' attempts to handcuff him § 87(2)(g)

It is therefore recommended that **Allegation H** be **Substantiated**.

Allegation (I) Abuse of Authority: Sergeant Ariel Cruz searched the vehicle in which § 87(2)(b) and an individual were occupants.

Allegation (J) Abuse of Authority: Sergeant Ariel Cruz stopped an individual.

Allegation (K) Abuse of Authority: Sergeant Ariel Cruz searched an individual.

Allegation (L) Abuse of Authority: Lieutenant Stephanie Mouzakitis seized § 87(2)(b) property.

It is undisputed that Sergeant Cruz searched § 87(2)(b) vehicle at the scene of the car stop.

§ 87(2)(b) stated that he did not provide consent for Sergeant Cruz to search his vehicle, and he repeatedly complained to officers that Sergeant Cruz was searching his vehicle illegally. Multiple officers explained to § 87(2)(b) that his vehicle would be seized, and § 87(2)(b) could either provide consent for officers to drive his vehicle back to the stationhouse, or his vehicle would be towed. § 87(2)(b) told the officers to call his mother, and he stated that he would allow officers to seize his vehicle in whichever way his mother advised. § 87(2)(b) was taken to the stationhouse prior to officers removing his vehicle, and he did not see how his vehicle was removed from the scene.

Sergeant Cruz stated that § 87(2)(b) vehicle was blocking the crosswalk and obstructing pedestrian traffic. After § 87(2)(b) was placed in handcuffs, Sergeant Cruz initially searched § 87(2)(b) vehicle to locate the weapon he suspected § 87(2)(b) of concealing. Sergeant Cruz entered the vehicle through the driver's side and searched the door pockets of both front doors, the center console, and the glove compartment. During this search, Sergeant Cruz discovered an open container of alcohol in § 87(2)(b) center console. Sergeant Cruz did not locate any weapons. Sergeant Cruz concluded that § 87(2)(b) "leaning motion" when the officers initially approached the vehicle, which Sergeant Cruz had suspected was the result of him attempting to conceal a weapon, had in fact been him attempting to conceal the open container of alcohol. Sergeant Cruz then exited the vehicle and asked § 87(2)(b) and the unidentified female for the vehicle's keys. All parties stated that they did not have the car keys. Sergeant Cruz conducted a second search of the vehicle to locate the car keys. This search covered the front and back seats of the vehicle, and the keys were not located. Sergeant Cruz then told Police Officer McCabe, "Ask [the unidentified female passenger]. Stop her." Sergeant Cruz testified that, by this comment, he intended to stop and search the unidentified female passenger. This passenger did not have the keys. Sergeant Cruz needed § 87(2)(b) car keys in order to drive the vehicle back to the stationhouse. He was not able to leave the vehicle on scene because it was blocking pedestrian traffic and there was no licensed driver present to take control of the vehicle. Sergeant Cruz did not order a tow truck because he didn't want to "go to that extreme."

Lieutenant Mouzakitis stated that § 87(2)(b) vehicle was obstructing vehicular traffic and needed to be removed to the stationhouse for safekeeping. Lieutenant Mouzakitis and other officers searched the surrounding area for the car keys, but she did not search § 87(2)(b) vehicle. Lieutenant Mouzakitis did not call a tow truck because she was "trying to make [it] easier" to safeguard § 87(2)(b) vehicle. After § 87(2)(b) was removed to the stationhouse, Lieutenant Mouzakitis convinced § 87(2)(b) to provide § 87(2)(b) car keys, and Police Officer Michael Phipps of the 46th Precinct drove § 87(2)(b) vehicle back to the stationhouse.

Timestamp 07:00 in Sergeant Cruz's BWC footage (**BR 05**) shows Sergeant Cruz's initial search of § 87(2)(b) vehicle, during which he locates the open container. Sergeant Cruz searches § 87(2)(b) vehicle again at various points throughout the footage. Sergeant Cruz does not seek § 87(2)(b) or § 87(2)(b) consent to search the vehicle at any point throughout the footage.

Police Officer McCabe's BWC footage (**BR 25**) shows, at timestamp 09:15, Sergeant Cruz telling Police Officer McCabe to stop the unidentified female passenger as she is walking away from the scene. Police Officer McCabe asks her if she has the keys, and she states, "I don't have anything."

You can search my bag. I don't have anything." She opens her bag and tilts it toward Police Officer McCabe as she says this, and Police Officer McCabe shines his flashlight into the bag. He does not find the keys.

Police Officer Daley's BWC footage (**BR 40**) shows, at timestamp 06:50, officers explaining to § 87(2)(b) that his vehicle can either be towed, or officers can drive it back to the stationhouse. § 87(2)(b) repeatedly tells officers to call his mother. § 87(2)(b) tells them that his mother has the spare keys to his vehicle, and she can bring them. § 87(2)(b) provided his mother's phone number and stated that the officers could do whatever his mother advised.

Lieutenant Mouzakitis's BWC footage (**BR 26**) shows officers attempting to locate § 87(2)(b) car keys for the majority of the footage. At timestamp 27:00, § 87(2)(b) calls § 87(2)(b) mother and gives the phone to Lieutenant Mouzakitis. She explains to § 87(2)(b) mother why the officers need § 87(2)(b) car keys. § 87(2)(b) mother appears to provide consent for the officers to take the car keys. Lieutenant Mouzakitis gives the phone back to § 87(2)(b) and § 87(2)(b) speaks briefly with § 87(2)(b) mother. § 87(2)(b) then agrees to give the car keys to officers, and he hands them to Police Officer Phipps.

Exceptions to the Fourth Amendment rule against warrantless searches of vehicles include the "automobile exception," which permits the warrantless search of a vehicle when there is probable cause to believe said vehicle contains evidence of a crime. People v. Galak, 81 N.Y.2d 463 (1993) (**BR 27**). As per People v. Hayden, 155 A.D.3d 1309 (2017) (**BR 37**), during a vehicle stop, an officer may seek consent to search the vehicle if the officer has founded suspicion of criminality. This consent must be "voluntarily given, and not the result of duress or coercion, express or implied, by the actions of the law enforcement authorities." People v. Quagliata, 53 A.D.3d 670 (2008) (**BR 38**).

Patrol Guide Procedure 212-11 (**BR 28**) outlines the circumstances under which an officer can seek consent to search an individual, which requires founded suspicion of criminality. In People v. Reid, 24 N.Y.3d 615 (2014) (**BR 29**) the courts established that officers could not frisk or search individuals solely based on a VTL violation, and any search in this circumstance must be incident to a lawful arrest.

"When a vehicle is situated so as to constitute an obstruction to traffic, and such vehicle is unattended or the person in charge of such vehicle has not arranged for its removal, a police officer... may direct its removal by a person licensed to engage in towing." NYC Administrative Code § 20-511 (**BR 30**).

§ 87(2)(g)

While an open container of alcohol was recovered from § 87(2)(b) center console during this search, Sergeant Cruz was not aware of the presence of the open container of alcohol prior to searching the vehicle § 87(2)(g)

It is therefore recommended that **Allegation I** be **substantiated**.

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation J** be **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation K** be close as **Within NYPD Guidelines**.

§ 87(2)(g) § 87(2)(b) vehicle was blocking the crosswalk and § 87(2)(b) did not have his license, § 87(2)(g)

It is therefore recommended that **Allegation L** be closed as **Within NYPD Guidelines**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- Sergeant Cruz has been a member of service for eleven years and has been a subject in six other CCRB complaints and twenty other allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Geberth has been a member of service for two years and has been a subject in two other CCRB complaints and eight other allegations, none of which were substantiated. § 87(2)(g)
- Lieutenant Mouzakitis has been a member of service for fifteen years and has been subject in six other CCRB complaints and fifteen other allegations, of which one was substantiated:
 - 201203485 involved one substantiated Stop allegation Lieutenant Mouzakitis. The Board recommended Command Discipline but the NYPD declined to prosecute and imposed no disciplinary action. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 5th, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**BR 33**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Investigator: _____ Investigator Teecie Dove July 6th, 2023
Signature Print Title & Name Date

Squad Leader: Alexander Opoku-Agyemang IM Opoku-Agyemang 7/10/2023
Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____